

		(30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist. Also at the Final Approval hearing, Class Counsel must also disclose whether counsel has any fee-splitting arrangement with any other counsel, or confirm none exists Additionally, at the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiff to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
110	Zetterberg vs. Lyon Management Group, Inc. 2025-01473737	Motion for Preliminary Approval of Class Settlement The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a data breach class action settlement with a maximum cash claim amount of \$400,000. Upon submission of papers reflecting the revisions identified below, the motion will be granted as follows: \$3,000 for plaintiff's enhancement payment (not to exceed); \$115,000 for attorneys' fees and costs (not to exceed); \$14,500 for settlement administration costs (not to exceed); and <u>As to the claim form:</u> 1. Include the case name, case number, and court on each page in the document header. ROA 104 Ex. 1(C). <u>As to the "short" notice:</u> 2. There is a formatting error that must be corrected so that all text is fully legible. ROA 104 Ex. 1(A). 3. The "What if I don't want to participate in the Settlement?" section should be revised to exclude reference to objections. ROA 104 Ex. 1(A). Remove the sentences "If you want to object to the Settlement, submit an objection to the Settlement Administrator by [Objection Deadline]. You are not required to file your objection with the Court." Id. Remove the phrase "or object" from the last sentence. Id. <u>As to the proposed order for preliminary approval (ROA 74 Ex. D):</u> 4. The court previously ordered that counsel information should be removed from the caption page. ROA 94. This has not been

		done. ROA 104 Ex. 1(D). - Remove “Unopposed” from the document title. ROA 104 Ex. 1(D). Add “of Class Action Settlement” to the end of the document title. The footer should mirror the document title. - The court previously ordered that the order was not a “judgment.” ROA 94. The footer continues to reflect “and Judgment.” ROA 104 Ex. 1(D). - The court previously ordered that the settlement and any amendments should be identified and attached as exhibits. ROA 94. The amendment is not identified or purportedly attached. ROA 104 Ex. 1(D) at 1. - Remove footnote 2. - Paragraph 6 should also identify the amendment to the settlement. - The court previously ordered that the last sentence of paragraph 11 should be deleted. ROA 94. This has not been done. Delete the entire last sentence of paragraph 9 and do not supplement the paragraph. ROA 104 Ex. 1(D) ¶ 9. Plaintiff must file corrected versions of all revised documents, including redline versions reflecting all changes. The final approval hearing is scheduled for February 25, 2027, at 2PM in Department CX102. The motion for final approval shall be filed at least 16 court days before the hearing. Plaintiff is ordered to give notice and to file a proof of service.
111	Embee Inc vs. Safeco Insurance Company of America 2012-00586683	Motion for Summary Judgment and/or Adjudication Defendant Fireman’s Fund Insurance Company (Fireman’s Fund) moves for summary judgment, or in the alternative, summary adjudication, against the fourth amended complaint of plaintiff Embee, Inc. fka Embee Plating (Embee). ROA 1979. For the following reasons, defendant’s motion for summary judgment is granted. Legal standard A defendant seeking summary judgment bears its burden of showing that a cause of action has no merit if the defendant shows that one or more elements of the cause of action cannot be established, or that the defendant has a complete defense to the cause of action. Cal. Civ. Proc. Code § 437c(p)(2); Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850-51. If a defendant does not meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. Binder v. Aetna